

25VECV04250 25VECV04250

County: los-angeles

Division: Civil Law and Motion

Department: I

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Case Number: 25VECV04250 Hearing Date: August 6, 2026 Dept: I

25VECV04250 ANGELINA

OCEGUERA, et al. vs JAIME GARCIA

August 6, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Minor's Comp.

I.

Background

On July 28, 2026, Plaintiffs Angelina

Oceguera ("Petitioner"), Mario Garcia ("Mario"), and Angelise Garcia

("Claimant"), a minor by and through her guardian ad litem Angelina Oceguera,

filed a complaint against Jaime Garcia ("Defendant") and Does 1 to 25 alleging

two causes of action: (1) motor vehicle negligence; and (2) general negligence.

On January 9, 2026, Plaintiffs filed a

notice of settlement.

On July 29, 2026, Petitioner filed the

instant petition for approval of compromise of claim or action or disposition

of proceeds of judgment for minor or person with a disability on behalf of

Claimant.

II. Petition

for Approval of Compromised Claim

Court approval is required for all settlements of a minor's claim. (Cal. Prob. Code §§ 3500, 3600, et seq.; Cal. Code of Civ. Proc. § 372.) “[W]ithout trial court approval of the proposed compromise of the ward's claim, the settlement cannot be valid. [Citation.] Nor is the settlement binding [on the minor] until it is endorsed by the trial court.” (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1338.) A minor, like Claimant, “shall appear either by a guardian or conservator of the estate or by a guardian ad litem appointed by the court in which the action or proceeding is pending, or by a judge thereof, in each case.” (CCP § 372(a)(1).) Alternatively, the petitioner may file a declaration demonstrating that he or she has a right to compromise the minor's claim under Prob. Code § 3500.

Regarding the substance of the petition, to obtain court approval of the settlement of a minor's claim, the petitioner must file a complete and “verified petition for approval of the settlement and must disclose ‘all information that has any bearing upon the reasonableness of the compromise.’ [Citations.]” (Barnes v. Western Heritage Ins. Co. (2013) 217 Cal.App.4th 249, 256; Cal. Rules of Court Rule 7.950.)

Petitioner seeks court approval for a settlement under which Claimant would receive \$6,355.40. (See MC-350 Item 10.) Claimant suffered injury from a motor vehicle accident, incurring various fractures and traumatic injuries. (Id. at Items 5-6.) Notably, an additional \$14,796.80 is to be paid to Mario, and \$8,847.80 to Petitioner. (Id. at Item 11.) Of the \$6,355.40, \$2,280 is to be paid as medical costs, \$2,118.25 as attorney's fees, and \$287.42 for costs. (Id. at Item 16.) Settlement funds are to be delivered to Petitioner. (Id. at Item 18b.)

Petitioner provides Claimant's medical records as Attachment 8. (See MC-350 Attachment 8.) Petitioner provides a reason for apportionment of settlement as Attachment 11b(3). (Id. at Attachment 11b(3).) Finally, attorney's fees are proper considering they represent approximately 33% of Claimant's settlement amount.

Based on the foregoing, the instant petition is GRANTED.

Petitioner to give notice.